



Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

Request for Conditional Approval by HRERA

2 messages

Vijyant Agarwal <prof.vijyant.agarwal@gmail.com>

1 June 2026 at 17:28

To: rera@hareraggm.gov.in, hrera-hry@gov.in, tcpharyana7@gmail.com, stp4.gurugram.tcp@gmail.com

Cc: Getamber Anand <Getamber@atsgreens.com>, Grand Stand Customercare <Grandstand.customercare@homekraft.in>, getamberanand@atsgreen.com, email@atsgreens.com, Ats Pratik Verma Hk <prateek.verma@homekraft.in>, udaivir.anand@atsgreen.com, Soibal Gupta <adv.soibal.gupta@gmail.com>, getamber@atsgreen.com

Request for Conditional Approval by HRERA**Date:** 01.06.2026**From:** Mr. Vijyant Agarwal (Allottee / Complainant), Co-allottee: Mrs. Vineeta Agarwal**Unit:** 3051, Tower 03, Type-D, ATS Grandstand Phase-I, Sector 99A, Gurugram**To:**

1. The Secretary / Competent Authority, Haryana Real Estate Regulatory Authority (HARERA), Regional Office, Gurugram - Email: rera@hareraggm.gov.in
2. The Secretary / Competent Authority, Haryana Real Estate Regulatory Authority (HARERA), State Headquarters, Panchkula - Email: hrera-hry@gov.in
3. The Director, Department of Town and Country Planning (DTCP), Haryana, Chandigarh - Email: tcpharyana7@gmail.com
4. The Competent Authority, STP Section-4, Gurugram, Department of Town and Country Planning (DTCP), Haryana - Email: stp4.gurugram.tcp@gmail.com

CC:

1. M/s ATS Realworth Pvt. Ltd. (existing promoter / respondent)
2. M/s Hasta Infrastructure Pvt. Ltd. (ATS Group)
3. M/s Homekraft Infra Pvt. Ltd. (proposed developer)
4. The Authorised Signatory, ATS - ATS Tower, Plot No. 16, Sector-135, Noida; and Project Site Office, ATS Grandstand, Sector 99A, Gurugram
5. (Promoter / Builder / ATS Group entities - as applicable)

Subject: Request that any approval for change of developer or revised plans be made strictly conditional on first executing HARERA order dated 18.04.2024 in Complaint No. 4463 of 2021 (Vijyant Agarwal and Anr. v. ATS Realworth Pvt. Ltd.) in full letter and spirit; and that **no developer-change approval be used to dilute, defer, or defeat adjudicated allottee rights.**

Respected Sir/Madam,

I respectfully submit that my execution proceedings are pending regarding HARERA order dated 18.04.2024 for Unit No. 3051.

Without prejudice and without making any final allegation at this stage, it is further submitted that the promoter/builder has avoided furnishing complete escrow account details, including credit and debit records, as directed in the said HARERA order. In the allottee's respectful view, this continued non-disclosure gives rise to a serious apprehension that the present matter may be an atypical case involving possible diversion or misapplication of project funds, which requires careful scrutiny by this Authority before any further approval connected with change of developer or revised plans is considered.

I request that before granting, acting upon, or allowing any effect to any approval related to change of developer and/or revised plans, this Hon'ble Authority may direct that:

1. Any such approval remains expressly conditional on prior full execution of the HARERA order dated 18.04.2024.
2. Compliance must be complete in letter and spirit, with documentary proof filed on record.
3. No developer-change approval is used to dilute, defer, or defeat adjudicated allottee rights.
4. In case of non-compliance, appropriate execution consequences follow in accordance with law.

This request is made so that adjudicated rights are not prejudiced by subsequent administrative approvals.

Without prejudice to the above, I further request that any decision in this regard be passed through a speaking and reasoned order. In the event effective protection and enforcement of the above directions is not granted, the allottee reserves all rights and remedies available in law to approach appropriate higher forums and competent authorities, including the Hon'ble High Court and any other competent authority, including the Enforcement Directorate (ED), if so advised and permissible in law. In any such proceedings, the allottee reserves the right to array or implead as necessary parties both the promoter/builder (including the entities named in CC above) and this Authority (HARERA), as may be required in accordance with law.

Yours faithfully,

Mr. Vijyant Agarwal & Mrs Vineeta Agarwal w/o Mr. Vijyant Agarwal

Allottee / Complainant

Annexures

Annexure 1 - 1_ORDER_APRIL_2024RERAATS.pdf: HARERA order dated 18.04.2024 in Complaint No. 4463 of 2021 (Vijyant Agarwal & Anr. v. ATS Realworth Pvt. Ltd.)

Annexure 2 - 2.certified copy of order.pdf: Certified copy of the said HARERA order, including Section 39 rectification proceedings

Annexure 3 - 3.Ats execution pdf 241024.pdf: ATS execution-related filing / document dated 24.10.2024

Annexure 4 - Reply of ATS wrt Allottee representation / objection regarding non-service of individual notice and non-disclosure of revised sanctioned plans-4_Gmail_Representation _ Objection ... GRANDSTAND sector 99A, Gurugram (1).pdf: (dated 17.05.2026)

Annexure 5 - 5_Response to the complaint to Vijayant Agarwal.docx: ATS reply 30th May 2026 (Response to the complaint to Vijayant Agarwal)

5 attachments

1_ORDER_APRIL_2024RERAATS.pdf
1235K



2_certified copy of order.pdf
5128K



4_Gmail_Representation _ Objection Regarding Non-Service of Individual Notice and Non-Disclosure of Revised Sanctioned Plans of the project GRANDSTAND sector 99A ,Gurugram (1).pdf
275K



5_Response to the complaint to Vijayant Agarwal.docx
21K



3_ATS_Execution241024.pdf
548K

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: prof.vijyant.agarwal@gmail.com

1 June 2026 at 17:28



Address not found

Your message wasn't delivered to **rera@hareraggm.gov.in** because the address couldn't be found or is unable to receive email.

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550 5.1.1 : Recipient address rejected: hareraggm.gov.in

Final-Recipient: rfc822; rera@hareraggm.gov.in

Action: failed

Status: 5.1.1

Remote-MTA: dns; mail.hareraggm.gov.in. (103.35.123.37, the server for the domain hareraggm.gov.in.)

Diagnostic-Code: smtp; 550 5.1.1 <rera@hareraggm.gov.in>: Recipient address rejected: hareraggm.gov.in

Last-Attempt-Date: Mon, 01 Jun 2026 04:58:47 -0700 (PDT)

6/1/26, 5:33 PM

Gmail - Request for Conditional Approval by HRERA

 **noname**
5K